

Form No.HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR.
JUDICIAL DEPARTMENT
Mst. Sadiqa Begum etc. Vs The Province of Punjab etc.
CR. No.72-D-2014/BWP
JUDGMENT

Date of hearing:	07.02.2014
Appellant by:	Jam Muhammad Sajjad, Advocate
Respondent by:	-

SADAQAT ALI KHAN, J. The instant Civil Revision has been filed by the present petitioners against the judgment and decree dated 23.09.2010 passed by the Civil Judge Ist Class, Bahawalpur according to which declaratory suit of respondents was decreed and against the judgment and decree dated 17.12.2013 passed by Additional District Judge, Bahawalpur according to which appeal of the present petitioners was dismissed.

2. The brief facts of the case are that one Chiragh Muhammad was owner in possession of two residential plots and agricultural land falling in Killa Nos.13/3, 14/2, 15/8, 16/1, 17/1 & 25/1 Square No.35, Khewat Nos.11, 12 & 31, situated at Chak No.5/DNB, Tehsil Yazman, District Bahawalpur. He died on 07.06.1962 and as a consequence whereof the said property was mutated in favour of Muhammad Siddique deceased (the predecessor in interest of present petitioners No.1 to 6), Muhammad Sharif petitioner No.7(sons), Mst. Bashiran Bibi deceased (predecessor-in-interest of respondents No.7 to 13) and Mst. Basso Mai deceased (the predecessors-in-interest of respondents No.6 and 14) widows of Chiragh Muhammad deceased being legal heirs through mutations No.43 & 115 dated 19.11.1962).

3. In fact, upon death of her previous husband namely Jewa, Mst. Basso had contracted second marriage with Chiragh Muhammad (hereinafter called the original owner)

but out of this wedlock no issue was born. However, she was survived with Nazir Ahmad (son), Mst. Zenab Bibi, Mst. Raheem Bibi (daughters) from previous husband namely Jewa (original plaintiffs of the instant suit). Mst. Basso died on 15.03.1985, therefore, the share having been devolved upon her from the estate of the original owner was mutated through mutations No.422 and 423 in favour of her said son and daughters accordingly (being her legal heirs). Muhammad Sharif S/O Mst. Basso Mai already died unmarried and thus was succeeded by the said Nazeer Ahmad, Mst. Zenab Bibi (since died) and Mst. Raheem Bibi.

4. The predecessors-in-interest of petitioners (Muhammad Siddique) and Muhammad Sharif sons of Chiragh Muhammad filed a suit for declaration challenging therein vires of mutation No.115 dated 19.11.1962 on the grounds that the original owner in his life had divorced Mst. Basso, therefore, she was not entitled to get anything from his estate. It was once decreed ex-parte on 26.06.1973 but subsequently the said decree was set aside on 28.05.1974 by accepting application for setting aside ex-parte decree moved by Mst. Basso Mai Wd/O Chiragh Muhammad and later on the suit was also dismissed for non-prosecution on 03.09.1974. However, in the meanwhile, the predecessors-in-interest of petitioners had got sanctioned mutation No.168 dated 11.12.1973 on the basis of the ex-parte decree dated 26.06.1973 (which ex-parte decree was subsequently set aside) as a result whereof Mst. Basso stood excluded from array of the legal heirs of the original owner and the whole disputed estate came in their hands.

5. Nazir Ahmad (son), Mst. Zenab Bibi and Mst. Raheem Bibi (daughters) of Mst. Basso Mai filed a suit for declaration with injunction as consequential relief on the grounds that they are still owners in possession of the disputed property and mutation No.168 dated 11.12.1973

(hereinafter called the impugned mutation) and the subsequent entries incorporated in the revenue record were collusive, fraudulent, null, void, against law and the facts and inoperative upon their rights but the said petitioners were adamant to deny their title, disturb their possession and to alienate the disputed property without any justification.

6. The predecessors-in-interest of the petitioners put their appearance in the suit. They submitted a written statement controverting therein the assertions and denying the allegations as contained in the plaint. The stance of the predecessors-in-interest of the petitioners had been that Mst. Basso was divorced by the original owner (their father) in his life and thus was not entitled to inherent anything from his estate. Therefore, mutations No.43 and 115 sanctioned in this regard were against law and the facts. They also denied possession of the contesting respondents qua the disputed land. Preliminary objections like, lack of cause of action, limitation, unclean hands, non-maintainability and frivolousness of the suit were also raised.

7. Out of the divergent pleadings of the parties following issues were framed by the trial court:-

ISSUES

1. Whether the plaintiffs are owners in possession of the suit land being the legal heirs of Mst. Basso and mutation No.168 dated 11.12.1973 is illegal, void and ineffective to the rights of plaintiff and plaintiffs are entitled to get decree as prayed for? OPP
2. Whether the deceased Chiragh Muhammad had divorced Mst. Basso and she was not entitled to get any share from his inheritance as widow? OPD
3. Whether the plaintiffs have no cause of action and locus standi to file this suit? OPD
4. Whether the defendants are entitled to get special costs under section 35-A CPC? OPD

5. Relief.

8. After completion of the trial learned trial court heard the arguments and after hearing the parties decreed the suit of the respondents vide judgment and decree dated 23.09.2010 and appeal was preferred by the present petitioner which too was dismissed by the lower appellate court vide judgment and decree dated 17.12.2013.

9. Hence, this Civil Revision.

10. Learned counsel for the petitioners contended that both the judgments and decrees of the trial court are against law and facts on the file and are liable to be set aside. It is submitted that Exh.D1 is an admissible document but the courts below did not consider the same. It is submitted that suit of the respondents was time barred and in this respect neither issue was framed nor both the courts below have attended this legal point. It is lastly submitted that plaintiffs/respondents have failed to prove their case which is liable to be dismissed.

11. I have heard the learned counsel for the petitioner and perused the record.

12. It is admitted fact that Mst. Basso Mai the predecessor-in-interest of the contesting respondents contracted second marriage with Chiragh Muhammad original owner of the suit property after the death of her previous husband namely Jewa. It is also admitted fact that Chiragh Muhammad original owner of the suit property was died in the year 1962 whereas Mst. Basso Mai died in the year 1985 and inheritance mutation of Chiragh Muhammad was sanctioned in which Mst. Basso Mai also inherited the property being widow of Chiragh Muhammad. Likewise, relationship of the contesting respondents with Mst. Basso Mai is not disputed and they are entitled to inherit estate of Mst. Basso Mai upon her death. It is also established on the record that prior to instant litigation Muhammad Siddique and Muhammad Sharif sons of

Chiragh Muhammad original owner of the suit property had instituted a suit for declaration and cancellation of the inheritance mutation to the extent of Mst. Basso Mai in the year 1972 with the assertion that Mst. Basso Mai was divorcee and was not entitled to inherit the property left by Chiragh Muhammad which suit was decreed ex-parte but on filing of an application by Mst. Basso Mai for setting aside ex-parte decree, the judgment and decree dated 26.06.1973 were aside which are Exh.P9 and Exh.P10. Exh.P12 further reveals that the said suit thereafter was dismissed for non prosecution on 03.09.1974. Disputed mutation was sanctioned on the basis of ex-parte judgment and decree dated 26.06.1973. The said judgment and decree was set aside by the trial court on 28.05.1974 by accepting the application of Mst. Basso Mai for setting aside ex-parte decree and thereafter suit filed by Muhammad Siddique and Muhammad Sharif (sons of Chiragh Muhammad original owner) was dismissed due to non prosecution on 03.09.1974. As the disputed mutation was sanctioned on the basis of ex-parte judgment and decree dated 26.06.1973 and above stated suit after setting aside ex-parte judgment and decree was dismissed due to non prosecution on 03.09.1974 and present petitioners did not challenge the dismissal order of the suit till today and superstructure of the ex-parte judgment and decree dated 26.06.1973 i.e. disputed mutation is liable to be demolished as foundation i.e. ex-parte judgment and decree dated 26.06.1973 on which basis the disputed mutation was sanctioned, had been set aside. So in view of above it is clear that inheritance mutations of Chiragh Muhammad were rightly sanctioned in which Mst. Basso Mai predecessor-in-interest of the contesting respondents had inherited suit property as widow of Chiragh Muhammad which was never challenged by the present petitioners after dismissal of their suit on 03.09.1974 in which they had challenged the above stated inheritance mutations on the

ground that Mst. Basso Mai was divorced by the original owner in his lifetime (Chiragh Muhammad). Both the judgments and decrees of the courts below are not the result of misreading or non reading of evidence and both the courts below have discussed every piece of evidence produced by the parties during the trial and impugned judgments and decrees of courts below are neither perverse nor illegal and learned counsel for the petitioner has not pointed out any illegality in the judgments and decrees of the trial court. Learned counsel for the petitioner could not point out any illegality or jurisdictional defect in the judgments of the courts below warranting no inference by this court. Learned counsel for the petitioner has also failed to point out any misreading or non reading in the evidence. Concurrent findings of the facts of the courts below if based on proper appreciation of evidence, could not be interfered in such jurisdiction. Revisional jurisdiction can be exercised in case of non assumption, illegal assumption or exercise of jurisdiction, illegality or with material irregularity. Reliance is placed on case titled "*Cantt. Board through Executive Officer Cantt. Board Rawalpindi VS. Ikhlaq Ahmad and others*" 2014 SCMR 161 in which august Supreme Court of Pakistan observed as under:

"It is not the requirement of law that the High Court in exercise of its revisional jurisdiction to discuss the findings recorded by the courts below on each issue, particularly when it concurs with them. The scope of revision is narrow and requires the High Court to examine whether the courts below have failed to exercise jurisdiction so vested in them or have acted in exercise of its jurisdiction illegally or with material irregularity and have misread the evidence brought on record by the parties. In other words, the provisions of section 115, CPC under which a High Court exercises its revisional jurisdiction, confer an exceptional and necessary power intended to

secure effective exercise of its superintendence and visitorial powers of correction unhindered by technicalities. The revisional jurisdiction of the High Court cannot be invoked against conclusions of law or fact, which do not, in any way, affect the jurisdiction of the court. In the instant case, the learned High Court, in law, could not have investigated into the facts or exercised its jurisdiction on the basis of facts or grounds, which were already proved by the parties by leading evidence. We are of the considered view that the judgment impugned in these proceedings is unexceptionable. The learned High Court was justified is not interfering in the concurrent findings of fact which were based on the material brought on record and proper appreciation of evidence.”

13. For the foregoing reasons, the instant civil revision has no merits and the same is hereby dismissed in limine.

(Sadaqat Ali Khan)
Judge

M.Afzal

APPROVED FOR REPORTING.